TARIRO LAVENDER MDULUZA
versus
ARLINGTONE ESTATE HOME OWNERS ASSOCIATION
and
TRUSTEES FOR THE TIME BEING OF JOKONYA FAMILY TRUST
and
LUXWELL JOKONYA

HIGH COURT OF ZIMBABWE
PHILLIPS J
HARARE;14 May 2026, 10 June 2026

Urgent Court Application

C T Tinarwo, B. Zimudzi for the Applicant
C Mateza for the 1st Respondents
E Bhasera, A Gama for the 2nd and 3rd Respondents

PHILLIPS J: The parties have requested for reasons these are;

Introduction

This is an urgent chamber application for a spoliation order wherein the Applicant seeks an order that she be restored possession and occupation of her usual residence situated at H37 Weaver Gardens Arlington Estate, Harare, being a piece of land owned by the Jokonya Family Trust.

Factual Background

The applicant was married to the third respondent and they were divorced on 3 December 2025. During the subsistence of their marriage, the two were staying at number H37 Weaver Gardens Arlington Estate, Harare a property that is under the control and administration of the second respondent. The applicant is still residing at the said property which she still regards as her home and had been enjoying peaceful, vacant and undisturbed possession of the property for a period in excess of five years.

On 7 May 2026, however, the first respondent acting on the orders of the second respondent and third respondent denied the applicant access and entrance into her usual

residence situated at H37 Weaver Gardens Arlington Estate, Harare (hereinafter referred to as the "premises"). It is alleged that the respondents despoiled the applicant of her usual and habitual place of residence by means of unlawful self-help as there is no court order authorizing and permitting the respondents to deny the applicant access into the premises. As a result of the respondents' actions, the applicant has been exposed to loss of accommodation, residence and disruption of livelihood. She cannot access her car, food, medication, clothes and other necessities which are in or at the premises. The applicant herself and her legal practitioners tried to engage the first respondent to no avail.

Relief Sought

1. The Application be and is hereby granted.

2. That the first, second and third Respondent be and are hereby ordered to restore to the Applicant's possession and occupation of the property known as H37 Weaver Gardens Arlington Estate, Harare within forty-eight hours.

3. To the extent that it becomes necessary or expedient, the Sheriff of the High Court be and is hereby authorized and empowered to attend to the restoration of the status quo ante.

4. That the Respondents jointly and severally, one paying the other to be absolved shall pay the costs of this application on a higher scale.

In *Limine*

The respondents are opposed to this application and raised points *in limine*. These are that:

1. The application is fatally defective as the certificate of urgency is incurably defective.

2. There is no urgency.

3. There exist material disputes of fact.

1. **The Certificate of Urgency is fatally defective**

The first respondent argued that, in an urgent court application, the court is triggered to deal with it on an urgent basis by the certificate of urgency, however, he averred that the certificate of urgency in casu is incurably defective in that the certifying legal practitioner

(Felix Muzeya) did not apply his own mind to the urgent application in that his certificate contains facts that are not found in the founding affidavit. The applicant, in her response, conceded that paragraph 7 of the certificate of urgency should not have been part of this application as such it can be expunged. Having looked at the certificate of urgency, it indeed contains facts that are not found in the Founding affidavit, particularly paragraph 7.

In dealing with this point in limine, this court found that it will be grossly unfair to penalise the applicant or the lawyers who prepared this whole application, for an oversight by the legal practitioner who certified the urgency of the application. It is the court's duty to dispense justice and to hold that the certificate of urgency is defective would unjustly prejudice the applicant. I therefore dismissed this point in limine.

2. Urgency

In the case of *Econet Wireless (Pvt) Ltd v Trustco Mobile (Proprietary) Ltd & Anor* 2013 (2) ZLR 309 (S) at 320D-E it was stated that,

> "It is clear that in terms of Rule 244 and 246 of the High Court Rules the decision whether to hear an application on the basis of urgency is that of a judge. The decision is one therefore that involves the exercise of a discretion."

In *Rephio Chirumbwa and 8 Ors* v *Bethlehem Apostolic Church and Another* SC 9/2020 it was also held that, in order to satisfactorily challenge the decision to hear an application as urgent, the appellants must show that the court a quo did not properly exercise its discretion. In light of the foregoing, the court has the discretion to determine whether a matter placed before it is urgent or not. However, this discretion must be exercised judiciously, taking into account the applicable principles. The leading cases on these principles are those of *Kuvarega* v *Registrar General & Another* 1998 (1) ZLR 188, CHATIKOBO J stated as follows at p193 F-G:

> "What constitutes urgency is not only the imminent arrival of the day of reckoning; a matter is urgent, if at the time the need to act arises, the matter cannot wait. Urgency which stems from deliberate or careless abstention from action until the deadline draws near is not the type of urgency contemplated by the rules. It necessarily follows that the certificate of urgency or the supporting affidavit must always contain an explanation of the non-timeous action if there has been any delay."

It has been held that spoliation is an inherently urgent remedy. In *Exmin Syndicate* v *Luke Dube & Ors* HB 102/22, MAKONESE J stated, at p11 of the cyclostyled judgment;

> "Spoliation proceedings are by their very nature urgent. An order for a *mandamante van spolie* seeks the restoration of property that has been despoiled and the restoration of the *status quo* ante."

In *casu*, the applicant's facts of the matter do not take it out of the inherently urgent category. There is an allegation that the first respondent denied the applicant access to the abovementioned premises without a court order and such an element constitutes to spoliation, calling for urgent redress. The court agrees with the applicant that the need to act arose on 7 May 2026 which led the applicant to approach the court on an urgent basis. In the court's considered view, the preliminary objection that the matter lacks urgency is without merit and accordingly cannot be sustained.

3. Material dispute of fact

In the case of *Supa Plant Investments (Pvt) Ltd* v *Chidavaenzi* 2009 (2) ZLR 132 (H) the court held that a material dispute of fact arises when material facts alleged by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence. MALABA CJ (as he then was) in the case of *Riozim (Pvt) Ltd* v *Falcon Resources (Pvt) Ltd and Anor* SC28-22 at page 7 of the cyclostyled judgment stated as follows;

> "The mere allegation of a possible dispute of fact is not conclusive of its existence. From decided cases, it is evident that a dispute of fact arises where the court is left in a state of reasonable doubt as to which course to take in resolving the dispute matter without further evidence being led."

In my view there is no material dispute of fact which cannot be resolved on the papers in this instance, besides applicant's submission that she was staying at the said premises and the respondents resorted to self-help. As such, the point *in limine* was not upheld.

Merits

The Law and Analysis

It is settled that in order to obtain a spoliation order two requirements must be satisfied. In *Botha and Another* v *Barret* 1966 (2) ZLR 73 (S) GUBRAY CJ (as he then was) at page 79 D-E stated that:

> "It is clear law that in order to obtain a spoliation order two allegations must be made and protected. These are:

1.That the applicant was in peaceful and undisturbed possession of land;

2.That the respondent deprived him of the possession forcibly or wrongfully against his consent."

The requirements for spoliation relief were further discussed in *Streamsleigh Investments (Pvt) Ltd* v *Autoband (Pvt) Ltd* SC 43/14. The court held as follows:

> "It has been stated in numerous authorities that before an order for *mandamus van spolie* may be issued an applicant must establish that he was in peaceful and undisturbed possession and was deprived illicitly."

In *Nino Bonino* v *De Lange* 1906 TS 120 at page 122 where the court in outlining the scope of the *mandamus van spolie* stated as follows:

> "It is a fundamental principle that no man is allowed to take the law into his own hands. No one is permitted to depose another forcibly or wrongfully against his consent of possession of property whether movable or immovable. If he does so the court will summarily restore the status quo ante and will do that as a preliminary to any enquiry or investigation into the merits of the dispute."

In *Ngukumba* v *Minister of Safety and Security and Others* 2014 (7) BCLR 788 (CC) para 10, where the court held as follows at page 8:

> "The essence of the mandament van spolie is the restoration before all else of unlawfully deprived possession to the possessor. It finds expression in the maxim spoliatus ante omnia restituendus est (the despoiled person must be restored to the possession before all else). The spoliation order is meant to prevent the taking of possession otherwise than in accordance with the law. Its underlying philosophy is that no one should resort to self-help to obtain or regain possession. The main purpose of the mandament van spolie is to preserve public order by restraining persons from taking the law into their own hands and by inducing them to follow due process."

It is true that the third respondent is the owner of the premises but the person who was in possession was the applicant. To force or direct the first respondent not to allow applicant access to the property or premises was an abuse of third respondent's authority. Although the first respondent had no choice but to listen to the person with authority the law is clear that even if one is not the rightful owner, if one is in undisturbed and peaceful possession due process and not self-help ought to be followed to evict the possessor. The issue of ownership does not arise, in spoliation matters. In spoliation matters it is apparent that the deciding factor is that deprivation should be effected lawfully, our law deprecates self-help. As such the court cannot ignore the self-help that was resorted to from 24 September 2025 to 7 May 2026, is unlawful and unacceptable. The court finds that the applicant clearly satisfied the requirements of an application for a spoliation order.

Costs

The first respondent will not be included in an order of costs and will pay for their own costs. The court found it proper that the second and third respondent pay costs on client and legal practitioner scale because the abuse of authority was unnecessary and to deprive the applicant access to the premises in the manner they did forced the applicant to approach the court on an urgent basis.

It is accordingly ordered that;

1. The Application be and is hereby granted.

2. The points in limine raised by the respondents be and are hereby dismissed.

3. That the first, second and third Respondent be and are hereby ordered to restore to the Applicant's possession and occupation of the property known as H37 Weaver Gardens Arlington Estate, Harare immediately.

4.To the extent that it becomes necessary or expedient, the Sheriff of the High Court be and is hereby authorized and empowered to attend to the restoration of the status quo ante.

5. That the second and third Respondents jointly and severally, one paying the other to be absolved shall pay the costs of this application on a higher scale

PHILLIPS J……..